

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 1717 of 2008

Faruk

.....convict-petitioner.

-Versus-

The State

.....opposite party.

No one appears

.....For the convict-petitioner.

Ms. Kohenoor Akter, A.A.G.

.....For the opposite party

Heard and Judgment on 17.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 20.10.2008 passed by the learned Additional Sessions Judge, 3rd Court, Comilla in Criminal Appeal No. 124 of 2007 affirming the judgment and order of conviction and sentence dated 06.12.2007 passed by the learned Additional Chief Judicial Magistrate, Comilla in Druta Bichar Case No. 34 of 2007 convicting the accused appellant under Section 4(1) of Druta Bichar Ain, 2002 and sentencing him thereunder to suffer rigorous imprisonment for a period of 03(three) years and to pay fine of Tk. 1,000 (one thousand) in default to suffer rigorous imprisonment for 3 (three)

months more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Today this matter appeared in the list for pronouncement of judgment.

No one appears.

In view of the fact that this petty old criminal Revision arising out of 03(three) years sentence has been dragging before this Court for more than 15 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 04.12.2008 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 03(six) months, which was lastly extended on 04.3.2009 for a further period of 06(six) months from the date of expiry and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 04.09.2009. In that view of the above, I have no hesitation to hold that the accused petitioner is fugitive from law.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Faruk is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.